

ARTICLE IV. SEWER SERVICE

DIVISION 1. GENERALLY

Sec. 42-238. Findings and purpose.

- (a) *Necessity.* The city council has previously found, and currently reaffirms that the use of septic tanks, privies, privy vaults, cesspools, or similar private sewage disposal facilities, is deleterious to the health, safety and welfare of the businesses, industries, governmental and charitable agencies, and residents of the city and that the health, safety and welfare of the businesses, industries, governmental and charitable agencies and residents is enhanced by the creation of a public sewer system and treatment plant, with regulation by the city of pollutants and other harmful materials according to state and federal standards.
- (b) *Method of measuring use.* Based on advice of its engineers, the city council has previously found, and currently reaffirms, that the most practical, cost effective and accurate method, given available technology, of measuring the use of the system's sewers and treatment plant by any user is by the meter or meters used to measure water usage.
- (c) *Continuation of service.* The city has previously found and, further currently reaffirms that, in order to provide and continue to provide for the safe and uninterrupted removal and treatment of sewage, pollutants and other harmful materials, it is necessary from time to time to install improvements, enlargements, extensions and repairs to the sewage disposal system.
- (d) *Purpose of charges.* Charges for the use of the system are hereby established for the purpose of recovering the cost of construction, reconstruction, maintenance, repair, and operation of the sewage disposal system. Such charges shall be made in accordance with the provisions hereinafter set forth and shall be made against all users of the sewage disposal system.
 - (1) All premises connected directly or indirectly to the sewage disposal system, except as hereinafter provided, shall be charged and shall make payments to the city in amounts computed on the basis of this article.
 - (2) The charges, rates and fees for service by the sewage disposal system are established herein to adequately provide for bond requirements and to ensure that the system shall not operate at a deficit.
 - (3) The city staff or designated parties shall periodically review the charges, rates, fees, rules and regulations of the sewage disposal system. Said review shall be completed not less than one time per fiscal year. Results of said review shall be reported to the city council with respective recommendations for any adjustments.
 - (4) The charges, rates and fees shall be set so as to recover costs from users in reasonable proportion to the cost of serving those users.
- (e) *Proportionality, fairness, and benefits of charges, rates and fees.*
 - (1) The city has previously found and further currently reaffirms that the fairest and most reasonable method of providing for the operation, maintenance, repair, replacement and improvement of the sewage disposal system, is to charge each user, based in all cases on amount of use, for the:

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- a. Cost of retiring debt secured by the net revenues of the system issued to pay for improvements and replacements to the system;
 - b. Costs of ongoing repair, replacement and improvement and budgeted as part of the annual costs of the system; and
 - c. Operation, administration and maintenance costs of the system.
- (2) The city has investigated several methods of apportioning the cost of the system. Based on its investigation and on the advice of its engineers, the city council has previously found, and currently reaffirms, that to ensure the stability and viability of the system for the benefit of its users, the fairest and most accurate way to apportion the costs of operation, maintenance, replacement and improvement of the system is to charge each user:
- a. A monthly service charge for sewer service (which varies depending on the size of the water intake pipe and meter) which fee reflects each user's proportionate share of the costs of the system;
 - b. A commodity charge for sewer service which is based on the user's actual use of water supplied by the system or, in the case of users whose water service is unmetered, a flat monthly fee based upon the number of rooms of such user.
- (3) The city council has previously found, and currently reaffirms that the charges, rates and fees set forth herein fairly and accurately apportion the fixed and variable costs of the system among the users of the system and that the monthly service charge for sewer service charged to each user of the system provides actual benefits to such users in the form of ready access to sewer services that would be unavailable if the monthly service charge was not charged.
- (f) *Useful life of improvements.* Based on the advice of its engineers, the city council has previously found and currently reaffirms that any improvements to or capital expenditures by the system did not, at the time of such construction and financing, have an expected useful or design life that would exceed the term of the bonded indebtedness issued to finance such improvement or capital acquisition and paid for by rates and charges.
- (g) *Charges, rates and fees for nonresidents.* The city has previously found, and hereby ratifies and confirms, that the total direct and indirect costs of providing service to users outside the city jurisdiction, where no other contract exists with the governmental units where those users are located, equals at least two times the rates and charges imposed for direct services and debt service cost to users located in the city. Indirect costs include payment for capital improvements, extraordinary repairs and replacements for the system benefiting all users of the system and paid for by users served within the corporate limits of the city or the corporate limits of other municipalities which have entered into contracts with the city for such costs, funding depreciation of the improvements comprising the system, and fire and police or other protection for the system paid by city taxpayers or by the governmental units with which the city has contracts for sewage disposal service.

(Prior Code, § 2.81; Ord. No. 2000-09, 5-15-2000)

Sec. 42-239. Establishment of the system.

Based on the findings and purposes set forth in section 42-238, the city has previously established and hereby reestablishes the city sewage disposal system (the system) consisting of all of the sewers, drains, the POTW treatment plant, and all other appurtenances to the system.

(Prior Code, § 2.82; Ord. No. 2000-09, 5-15-2000)

Sec. 42-240. Extensions or improvements.

Extensions of and improvements to the system shall be constructed when the same become necessary or proper, in the judgment of the council. The cost of all improvements to, and extensions of, the system shall be at the expense of the person or properties benefiting by the improvements or extension, reasonably proportioned to the benefits received, or at the expense of the general fund of the city. Notwithstanding the foregoing, improvements to the system that cannot be attributed to particular users of the system may be allocated proportionally among all users of the system. Notwithstanding the foregoing, the cost of improvements to the system whose benefit cannot be attributed to particular users or groups of users of the system may be allocated proportionally among all users of the system.

(Prior Code, § 2.83; Ord. No. 2000-09, 5-15-2000)

Sec. 42-241. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Accidental discharge means the loss of any toxic, hazardous or other potential pollutant into the sanitary sewer system by a discharger as a result of an accident or failure of a facility within the plant or pretreatment facility.

Act or the act means the Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 USC 1251 et seq.

Approval authority means the State of Michigan as the approval authority as Michigan has an EPA approved pretreatment program.

Authorized representative of industrial user means:

- (1) A principal executive officer of at least the level of vice-president, if the industrial user is a corporation;
- (2) A general partner or proprietor if the industrial user is a partnership or proprietorship, respectively;
- (3) A duly authorized representative of the individual designated in subsections (1) and (2) of this definition, if such representative is responsible for the overall operation of the facilities from which the indirect discharge originates. This may also include a staff member having overall responsibility for environmental matters for the company (R323.2310(11)(c)(ii)).

Biochemical oxygen demand (BOD) means the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedure, five days at 20 degrees Celsius, expressed in terms of weight and concentration, milligrams per liter or mg/l.

Best Management Practices (BMPs) are schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the prohibitions listed in Section 2.1 A and B [40 CFR 403.5(a)(1) and (b)]. BMPs include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage.

Building drain means that part of the lowest horizontal piping of a drainage system which receives the discharge from soil, waste and other drainage pipes inside of walls of the building and conveys to the building sewer, beginning five feet outside the inner face of the building wall.

Building sewer means the extension from the building drain to the public sewer or other place of disposal.

Bypass means the intentional diversion of wastestreams from any portion of a user's treatment facility.

Categorical pretreatment standards means any regulation containing pollutant discharge limits promulgated by the EPA in accordance with section 307(b) and (c) of the Clean Water Act, 33 USC Sec 1317, which apply to a specific category of nondomestic users and which appear in 40 CFR Chapter I, Subchapter N (1990), Parts 405-471.

COD means chemical oxygen demand or the measure of the oxygen consuming capacity of inorganic and organic matter present in water or wastewater, expressed as the amount of oxygen consumed from a chemical oxidant in a specified test; it does not differentiate between stable and unstable organic matter, and thus does not necessarily correlate with BOD.

Combined sewer means a sewer receiving both surface runoff and sewage.

Control authority means the City of Cadillac.

Cooling water means the water discharged from any use such as air conditioning, cooling or refrigeration, or to which the only pollutant added is heat.

Daily average means the sum of the concentrations of a constituent for the measurement period divided by the number of days on which the discharge was sampled and analyzed in such period. The concentrations which are added are single numbers for single days for all days for which analyses are obtained (whether by the user or the city), but such concentrations may be based upon a sample or samples taken over either all or part of that day and upon single or multiple analyses for that day as determined by the city.

Daily maximum means the concentration which shall not be exceeded on any single calendar day.

Direct discharge means the discharge of treated or untreated wastewater directly to the waters of the state.

Director means the person designated by the city to supervise the operation of the publicly owned treatment works and who is charged with certain duties and responsibilities by this article, or his duly authorized representative.

Domestic waste means that waste originating mainly from residential sources.

Environmental protection agency (EPA) means the U.S. Environmental Protection Agency, or where appropriate, the term may also be used as a designation for the administrator or other duly authorized official of said agency.

Existing source means any source of a discharge that is not a new source.

Garbage means solid wastes from the preparation, cooking and dispensing of food, and from the handling, storage, and sale of produce.

Grab sample means a sample which is taken from a wastestream on a one-time basis with no regard to the flow in the wastestream and without consideration of time. The period of collection does not exceed 15 minutes.

Holding tank waste means any waste from holding tanks such as vessels, chemical toilets, campers, trailers, septic tanks, and vacuum-pump tank trucks.

Indirect discharge means the discharge or the introduction of nondomestic pollutants from any source regulated under section 307(b) or (c) of the act (33 USC 1317), into the POTW (including holding tank waste discharged into the system).

Industrial user means a source of indirect discharge, which does not constitute a discharge of pollutants under regulations issued pursuant to section 402 of the act (33 USC 1342.)

Industrial waste means the liquid waste from industrial processes as distinct from sanitary sewage.

Interference means a discharge which, alone or in conjunction with a discharge or discharges from other sources, both:

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- (1) Inhibits or disrupts the POTW, its treatment processes or operations, or its sludge processes, use or disposal; and
 - (2) A cause of a violation of any requirement of the City of Cadillac NPDES permit (including an increase in the magnitude or duration of a violation) or of the prevention of sewage sludge use or disposal in compliance with the following statutory provisions and regulations or permits issued thereunder (or more stringent state or local regulations):
 - a. Section 405 of the Clean Water Act;
 - b. The Solid Waste Disposal Act (SWDA), including title II, more commonly referred to as the Resource Conservation and Recovery Act (RCRA), and including state regulations contained in any state sludge management plan prepared pursuant to subtitle D of the SWDA;
 - c. The Clean Air Act;
 - d. The Toxic Substances Control Act; and
 - e. The Marine Protection, Research, and Sanctuaries Act.

EGLE Medical waste means isolation wastes, infectious agents, human blood and blood byproducts, pathological wastes, sharps, body parts, fomites, etiologic agents, contaminated bedding, surgical wastes, potentially contaminated laboratory wastes and dialysis wastes.

Mg/l means milligrams per liter, or parts per million (ppm).

Michigan Department of Environment, Great Lakes, and Energy (EGLE) means the state department responsible for approving NPDES permits and Industrial Pretreatment Program approval and oversight, or its successor.

Monthly average means the sum of all “daily discharges” measured during a calendar month divided by the number of “daily discharges” measured during that month.

Monthly average limit means the highest allowable average of “daily discharges” over a calendar month, calculated as the sum of all “daily discharges” measured during a calendar month divided by the number of “daily discharges” measured during that month.

National Pollution Discharge Elimination System (NPDES) permit means a permit issued pursuant to section 402 of the Act (33 USC 1342).

Natural outlet means any outlet into a watercourse, pond, ditch, lake or other body of surface water or groundwater.

New source means:

- (1) Any building, structure, facility, or installation from which there is or may be a discharge, the construction of which commenced after the publication of proposed pretreatment standards under section 307(c) of the act which will be applicable to such source if such standards are thereafter promulgated in accordance with that section, provided that:
 - a. The building, structure, facility, or installation is constructed at a site at which no other source is located;
 - b. The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge at an existing source; or
 - c. The production of wastewater generating processes of the building; structure, facility, or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility

is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source should be considered.

- (2) Construction on a site at which an existing source is located results in a modification rather than a new source, if the construction does not create a new building, structure, facility, or installation meeting the criteria of subsections (1)b or c of this definitions, but otherwise alters, replaces, or adds to existing process or production equipment.
- (3) Construction of a new source, as defined herein, has commenced if the owner or operator has:
 - a. Begun, or caused to begin, as part of a continuous on-site construction program:
 1. Any placement, assembly, or installation of facilities or equipment;
 2. Significant site preparation work including clearing, excavation, or removal of existing buildings, structures, or facilities which is necessary for the placement, assembly, or installation of new source facilities or equipment; or
 3. Entered into a binding contractual obligation for the purchase of facilities or equipment which are intended to be used in its operation within a reasonable time.
 - b. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this subsection.

Operation and maintenance means the satisfactory provision for ensuring proper and efficient functioning of the treatment works in accordance with the NPDES permit and U.S. EPA grant conditions.

Operational upset means an exceptional incident in which the discharger unintentionally and temporarily is in a state of noncompliance with the terms of the discharge permit or with various federal or state parameters and as a result of factors not under reasonable control of the discharger. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation.

Pass through means a discharge which exits the POTW into waters of the United States in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the POTW's NPDES permit (including an increase in the magnitude or duration of a violation).

Person means any individual, firm, municipality, company, association, society, corporation, partnership, or group, including their officers and employees who have responsibility for or actual involvement in the matters regulated by the chapter.

pH means the logarithm (base 10) of the reciprocal of the concentration of hydrogen ions expressed in grams per liter of solution.

Pollutant means any dredged spoil, solid waste, incinerator residue, sewage, garbage, sewage sludge, munitions, chemical wastes, biological materials, radioactive materials, heat, wrecked or discharged equipment, rock, sand, cellar dirt and industrial, municipal and agricultural waste discharged into water.

Pollution means the manmade or man-induced alteration of the chemical, physical, biological, and radiological integrity of water.

POTW means the publicly owned treatment works, as defined by the Clean Water Act, that is owned by the city, including any devices, processes and systems used in the storage, treatment, recycling, or reclamation of wastewater, sewage, or sludge, as well as sewers, pipes and other conveyances used to collect or convey wastewater or sewage to the treatment works. The term "POTW" shall also include any sewers that convey wastewaters to the city's POTW from persons outside the city who are, by contract or agreement with the city,

users of the city's POTW. The term "POTW" may also be used in this article to refer to the city or its authorized representatives.

POTW treatment plant means the portion of the POTW designed to provide treatment to wastewater.

Pretreatment or treatment means the reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater to a less harmful state prior to or in lieu of discharging or otherwise introducing such pollutants into a POTW. The reduction or alteration can be obtained by physical, chemical or biological processes, process changes, or by other means, except as prohibited by 40 CFR 403.6(d).

Pretreatment requirements means any substantive or procedural requirement related to pretreatment, other than a pretreatment standard imposed on an industrial user.

Pretreatment standard means prohibited discharge standards, categorical pretreatment standards, and Local Limits.

Properly shredded garbage means the wastes from the preparation, cooking and dispensing of foods that have been shredded to such degree that all particles will be carried freely under the flow conditions normally prevailing in public sewers, with no particle greater than one-half inch in any dimension.

Public sewer means a sewer in which all owners of abutting properties have equal rights, and is controlled by a public authority.

Publicly owned treatment works (POTW) means a treatment works as defined by section 212 of the Act, (33 USC 1292) which is owned in this instance by the city. The term "publicly owned treatment works" includes any sewer that conveys wastewater to the POTW treatment plant, but does not include pipes, sewers or other conveyances not connected to a facility providing treatment. The term "POTW" shall also include any sewers that convey wastewaters to the POTW from persons outside the city who are, by contract or agreement with the city, users of the city's POTW.

Replacement means expenditures for obtaining and installing equipment, accessories, or appurtenances which are necessary during the service life of the treatment works to maintain the capacity and performance, for which such works were designed and constructed.

Sanitary sewer means a sewer which carries sewage and to which stormwater, surface water and groundwater are not intentionally admitted.

Significant industrial user means:

- (1) Any industrial user subject to categorical standards.
- (2) Any industrial user of the city's wastewater disposal system who:
 - a. Discharges an average of 25,000 gallons per day or more of process wastewater, excluding non-contact cooling and boiler blowdown;
 - b. That contributes a process wastestream which makes up five percent or more of the dry weather hydraulic or organic capacity of the POTW; or
 - c. Has a reasonable potential, in the opinion of the control authority, to adversely affect the POTW or a reasonable potential to violate any pretreatment standard or requirement.

Significant noncompliance (SNC) means:

- (1) Chronic violations of wastewater discharge limits, defined herein, as those in which 66 percent or more of all of the measurements taken during a six-month period exceed (by any magnitude) the daily maximum limit or the average limit for the same pollutant parameter.

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- (2) Technical review criteria (TRC) violations, defined herein, as those in which 33 percent or more of all of the measurements for each pollutant parameter taken during a six-month period equal or exceed the product of the daily maximum limit or the average limit multiplied by the applicable TRC (TRC = 1.4 for conventional pollutants, BOD, TSS, fats, oil and grease, and 1.2 for all other pollutants except pH).
 - (3) Any other violation of a pretreatment effluent limit, daily maximum, or longer-term average that the control authority determines has caused, alone or in combination with other discharges, interference or pass through, including endangering the health of POTW personnel or the general public.
 - (4) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or to the environment or has resulted in the POTW's exercise of its emergency authority under this article and R323.2306(a)(vi) to halt or prevent the discharge.
 - (5) Failure to meet, within 90 days after the schedule date, a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction, or attaining final compliance.
 - (6) Failure to provide, within 30 days after the due date, required reports such as baseline monitoring reports, 90 day compliance reports, periodic self monitoring reports, and reports on compliance with compliance schedules.
 - (7) Failure to accurately report noncompliance.
 - (8) Any other violation or group of violations which the control authority determines will adversely affect the operation or implementation of the local pretreatment program.

Slug discharge means a discharge of a nonroutine, episodic nature, including, but not limited to, an accidental spill or a noncustomary batch discharge.

Standard industrial classification (SIC) means a classification pursuant to the Standard Industrial Classification Manual, issued by the Executive Office of the President, Office of Management and Budget, 1972.

Storm sewer or storm drain means a sewer which carries stormwater and surface water and drainage, but excludes sewage and polluted industrial wastes.

Stormwater means any flow occurring during or following any form of natural precipitation and resulting therefrom.

Suspended solids means the total suspended matter that floats on the surface of, or is suspended in, water, wastewater or other liquids, and which is removable by laboratory filtering.

User means any person, who contributes, causes or permits the contribution of wastewater into the city's POTW.

User charge means a charge levied on users of treatment works for the cost of operation and maintenance of such works.

Wastewater means the liquid and water-carried industrial or domestic wastes from dwellings, commercial buildings, industrial facilities, and institutions together with any groundwater or surface water that may be present, whether treated or untreated, which is contributed into or permitted to enter the POTW.

Wastewater contribution permit. As set forth in division 10 of this article.

Watercourse means a channel in which a flow of water occurs, either continuously or intermittently.

Waters of the state means all streams, lakes, ponds, marshes, watercourses, waterways, wells, springs, reservoirs, aquifers, irrigation systems, drainage systems and all other bodies or accumulations of water, surface or underground, natural or artificial, public or private, which are contained within, flow through, or border upon the state or any portion thereof.

(Prior Code, § 2.84; Ord. No. 2000-09, 5-15-2000)

Sec. 42-242. Abbreviations.

The following abbreviations shall have the following designated meanings:

BOD	Biochemical oxygen demand
CFR	Code of Federal Regulations
COD	Chemical oxygen demand
EPA	Environmental Protection Agency
l	Liter
mg	Milligrams
mg/l	milligrams per liter
NPDES	National Pollutant Discharge Elimination System
POTW	Publicly owned treatment works
SIC	Standard industrial classification
SWDA	Solid Waste Disposal Act, 42 USC 6901 et seq.
USC	United States Code
TSS	Total suspended solids

(Prior Code, § 2.85; Ord. No. 2000-09, 5-15-2000)

Secs. 42-243—42-255. Reserved.

DIVISION 2. USE OF PUBLIC SEWERS REQUIRED

Sec. 42-256. Waste deposits.

It shall be unlawful for any person to place, deposit, or permit to be deposited in any unsanitary manner upon public or private property within the city, or in any area under the jurisdiction of said city, any human or animal excrement, garbage, or other objectionable waste.

(Prior Code, § 2.86; Ord. No. 2000-09, 5-15-2000)

Sec. 42-257. Water pollution.

It shall be unlawful to discharge or cause to be discharged into any storm sewer, natural watercourse, or artificial watercourse, any sewage or other polluted waters other than stormwater or uncontaminated industrial waters as heretofore defined; or to increase an approved use, except upon special agreement or arrangement with the city manager and in accordance with rules and procedures of appropriate agencies of the state.

(Prior Code, § 2.87; Ord. No. 2000-09, 5-15-2000)

Sec. 42-258. Privies and septic tanks.

Except as hereinafter provided, it shall be unlawful to construct or maintain any privy, privy vault, septic tank, cesspool, or other facility intended or used for the disposal of sewage.

(Prior Code, § 2.88; Ord. No. 2000-09, 5-15-2000)

Sec. 42-259. Sewer connection required.

The owner of all houses, buildings or properties used for human occupancy, employment, recreation, or other purpose, (where liquid wastes are produced), situated within the city and abutting on any street, alley or other public right-of-way in which there is now located or may in the future be located a public sanitary sewer of the city, is hereby required, at their expense, to install suitable toilet facilities and connect such facilities directly to the proper public sanitary sewer. Said connection shall be preceded by proper application for and receipt of a sanitary sewer connection permit. The city council may require any such owner, pursuant to the authority conferred upon it by law or ordinance, to make such installations and connections. Said connections shall be completed and inspected prior to occupancy.

(Prior Code, § 2.89; Ord. No. 2000-09, 5-15-2000)

Secs. 42-260—42-270. Reserved.*DIVISION 3. PRIVATE SEWAGE DISPOSAL***Sec. 42-271. Public system unavailable.**

When a public sanitary or combined sewer is not available under the provision of section 42-259 the building sewer shall be connected to a private sewage disposal system constructed in compliance with state law and the regulations of the city council.

(Prior Code, § 2.90; Ord. No. 2000-09, 5-15-2000)

Sec. 42-272. Location requirements.

Where private sewage disposal systems are constructed, they must be located at least 50 feet from any surface water, natural or artificial drain, or open joint, subsurface groundwater, or tile drain unless otherwise approved by the city. All installations shall comply with the existing state laws and regulations.

(Prior Code, § 2.91; Ord. No. 2000-09, 5-15-2000)

Sec. 42-273. Discontinuance when public system available.

- (a) At such time as a public sanitary sewer becomes available to a property served by a private sewage disposal system, and unless established by council to the contrary, all buildings as described in section 42-259 shall make proper installation and connection to said public sewer when one of the following occurs:
 - (1) Failure of an existing private sewage disposal system. Said failure shall be confirmed by either the appropriate city official or the local health department sanitarian.

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- (2) Action by the city council to establish a date certain for connections to be made. Said action may be applied to individual buildings or to defined areas or districts.
- (b) All connections shall be preceded by a proper application and receipt of a sanitary sewer connection permit.
- (c) All component parts of any private sewage disposal system shall be abandoned in accordance with city regulations and shall be inspected and approved by designated city officials.

(Prior Code, § 2.92; Ord. No. 2000-09, 5-15-2000)

Sec. 42-274. Maintenance.

The owner shall operate and maintain the private sewage disposal facilities in a sanitary manner at all times, at no expense to the city.

(Prior Code, § 2.93; Ord. No. 2000-09, 5-15-2000)

Sec. 42-275. Additional requirements.

No statement contained in this article shall be construed to interfere with any additional requirements that may be imposed by the city council or health department with respect to private sewage disposal.

(Prior Code, § 2.94; Ord. No. 2000-09, 5-15-2000)

Secs. 42-276—42-298. Reserved.

DIVISION 4. BUILDING SEWERS AND CONNECTIONS

Sec. 42-299. Authorized persons.

No unauthorized person shall uncover, make any connections with or opening into, use, alter, or disturb any public sewer or appurtenance thereof without first obtaining a written permit from the manager or from such official as he may designate.

(Prior Code, § 2.95; Ord. No. 2000-09, 5-15-2000)

Sec. 42-300. Permit required.

All connections with any sewer or the city shall be made only on written authorization and permits issued by the city and on such forms and on payment of such fees as shall be established from time to time by ordinance.

(Prior Code, § 2.96; Ord. No. 2000-09, 5-15-2000)

Sec. 42-301. Costs borne by owner of property.

All costs and expenses incident to the installation and connection of the building sewer shall be borne by the owner of said property. The owner shall indemnify the city from all loss or damage that may directly be occasioned by the installation of the building sewer.

(Prior Code, § 2.97; Ord. No. 2000-09, 5-15-2000)

Sec. 42-302. Application; plans required.

All applicants for sewer connection permits shall, when required, submit plans and specifications of all plumbing construction within such building or premises and such plans and specifications shall meet the requirements of the state construction code, and all orders, rules and regulations of the department of health. The approval of a connection permit shall also be contingent upon the availability of the capacity in all downstream sewers, lift stations, force mains, and the sewage treatment plant and including such limitations as may be applied under division 9 of this article. When such plans and specifications have been approved by the city council or by such officials as they may designate, a sewer or plumbing permit shall be issued, subject to final inspection and approval when construction is completed. Final approval will be subject to compliance with the state construction code, and all orders, rules and regulations of the local department of health and EGLE.

(Prior Code, § 2.98; Ord. No. 2000-09, 5-15-2000)

Sec. 42-303. Inspection.

The applicant for a building sewer permit shall notify the city engineer when the building sewer is ready for inspection. The city engineer or his designated representative shall then inspect said building and plumbing construction therein and if such construction meets the previous requirements as so approved in the construction permit, a sewer connection approval shall be issued, subject to the applicable provisions of this article. Upon final approval of any sewer connection, all sewer supports, testing of the sewer, back filling of sewer, including material and other elements contingent on completion of installation, shall comply with the state construction code.

(Prior Code, § 2.99; Ord. No. 2000-09, 5-15-2000)

Sec. 42-304. Maintenance responsibility of owner.

The costs of all repairs, maintenance and replacements of existing building sewers and their connection to public sewers shall be borne by the property owner. Such owner shall make application for a permit to perform such work to the city through the designated representative.

(Prior Code, § 2.100; Ord. No. 2000-09, 5-15-2000)

Sec. 42-305. Connections to public sewer by approved representative.

All connections to existing or new sewers will be made by employees of the city or their approved representatives. The connection of the building sewer into the public sewer shall be made at the "y" branch, if such branch is available at a suitable location.

(Prior Code, § 2.101; Ord. No. 2000-09, 5-15-2000)

Sec. 42-306. Notice to inspect.

The applicant for the building sewer permit shall notify the city when the building sewer is ready for inspection and connection to the public sewer.

(Prior Code, § 2.102; Ord. No. 2000-09, 5-15-2000)

Sec. 42-307. Excavation precautions.

All excavations for building sewer installation shall be adequately guarded with barricades and lights so as to protect the public from hazard. Streets, sidewalks, parkways, and other public property disturbed in the course of the work shall be restored in a manner satisfactory to the city.

(Prior Code, § 2.103; Ord. No. 2000-09, 5-15-2000)

Sec. 42-308. Separate connections required.

Each building connected to any public sewer shall be connected by means of a separate building sewer. The use of multiple building sewers is prohibited.

(Prior Code, § 2.104; Ord. No. 2000-09, 5-15-2000)

Secs. 42-309—42-334. Reserved.*DIVISION 5. USE OF THE PUBLIC SEWERS***Sec. 42-335. Unpolluted water.**

No person shall discharge, or cause to be discharged, any stormwater, surface water, groundwater, roof runoff, subsurface drainage, cooling water or unpolluted industrial process waters to any sanitary sewer.

(Prior Code, § 2.105; Ord. No. 2000-09, 5-15-2000)

Sec. 42-336. Stormwater and unpolluted drainage.

Stormwater and all other unpolluted drainage shall be discharged to such sewers as are specifically designated as storm sewers, or to a natural outlet approved by the city, and in compliance with rules and procedures of various agencies of the state. Industrial cooling water or unpolluted process waters may be discharged, upon approval of the city, to a storm sewer or natural outlet. The city has the right to exclude industrial or commercial waste in whole or in part, for any reason from storm sewers. The city shall issue permits for all direct connections to designated storm sewers prior to allowing said connections.

(Prior Code, § 2.106; Ord. No. 2000-09, 5-15-2000)

Sec. 42-337. Prohibited uses.

- (a) No user shall contribute or cause to be contributed, directly or indirectly, any pollutant or wastewater which will interfere with the operation or performance of the POTW or cause pass through. These general prohibitions apply to all such users of a POTW whether or not the user is subject to national categorical pretreatment standards or any other national, state, or local pretreatment standards or requirements.
- (b) A user may not contribute the following substances to any POTW:
 - (1) Any wastewater having a temperature which will inhibit biological activity in the POTW treatment plant resulting in interference, but in no case wastewater with a temperature at the introduction into the

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- POTW which exceeds 40 degrees Celsius (104 degrees Fahrenheit) unless the POTW treatment plant is designed to accommodate such temperature.
- (2) Any gasoline, benzene, naphtha, fuel oil, or other flammable or explosive liquid, solid or gas. Pollutants which create a fire or explosion hazard in the POTW, including, but not limited to, wastestreams with a closed cup flashpoint of less than 140 degrees Fahrenheit or 60 degrees Celsius using the test methods specified in 40 CFR 261.21.
 - (3) Any ashes, cinders, sand, mud, straw, shavings, metal, glass, rags, feathers, tar, plastic, wood, paunch manure, or any other solid or viscous substance of causing obstruction to the flow in sewers or other interference with the proper operation of the sewage works.
 - (4) Any wastes having any other corrosive properties capable of causing damage or hazard to structures, equipment, and personnel of the sewage works.
 - (5) Any waters, or wastes containing a toxic or poisonous substance in sufficient quantity to injure or interfere with any sewage treatment process, constitute a hazard to humans or animals, fish or aquatic life, or create any hazard in the receiving waters or in the POTW.
 - (6) Any waters or wastes containing suspended solids of such character and quantity that unusual attention or expense is required to handle such materials at the sewage treatment plant.
 - (7) Any noxious or malodorous gas or substance capable of creating a public nuisance.
 - (8) Any waters and/or wastes not complying to all NPDES permit requirements, pretreatment standards, and all other unspecified state and federal regulations.
 - (9) Any waters or wastewaters having chlorine demand in excess of 15 mg/l.
 - (10) Any waters or wastes having a pH less than 5.5 and greater than 9.5.
 - (11) Any substance which may cause the POTW's effluent or any other product of the POTW such as residues, sludges, or scums, to be unsuitable for reclamation process. In no case, shall a substance discharged to the POTW cause to the POTW to be in noncompliance with sludge use or disposal criteria, guidelines or regulations developed pursuant to the Solid Waste Disposal Act, the Clean Air Act, the Toxic Substance Control Act, or state criteria applicable to the sludge management method being used.
 - (12) Any wastewater with objectionable color not removed in the treatment process, such as, but not limited to, dye wastes and vegetable tanning solutions.
 - (13) Any pollutants, including oxygen demanding pollutants (BOD, etc.), released at a flow rate and/or pollutant concentration which a user knows or has reason to know will cause interference to the POTW. In no case shall a slug load have a flow rate or contain concentration or qualities of pollutants that exceed, for any time period longer than 15 minutes, more than five times the average 24-hour concentration, quantities, or flow during normal operation.
 - (14) Any wastewater containing any radioactive wastes or isotopes of such half-life or concentration as may exceed limits established by the director in compliance with applicable state or federal regulations.
 - (15) Petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin in amounts that will cause interference or pass through.
 - (16) Pollutants which result in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute worker health safety problems.
 - (17) Any trucked or hauled pollutants, except as provided by division 9 of this article.

(c) When the director determines that a user is contributing to the POTW, any of the above enumerated substances in such amounts as to interfere with the operation of the POTW, the director shall:

- (1) Advise the user of the impact of the contribution on the POTW;
- (2) Develop effluent limitations for such user to correct the interference with the POTW;
- (3) Set a time limit for compliance with subsections (c)(1) and (2) of this section.

(Prior Code, § 2.107; Ord. No. 2000-09, 5-15-2000)

Sec. 42-338. Interceptors.

Grease, oil, sand interceptors, and conventional grease traps shall be provided when, in the opinion of the city, they are necessary for the proper handling of liquid wastes containing grease in excessive amounts, or any flammable wastes, sand and other harmful ingredients; except that such interceptors shall not be required for private living quarters or dwelling units. All interceptors shall be of a type and capacity approved by the city, and shall be located as to be readily and easily accessible for cleaning and inspection. Grease and oil interceptors shall be constructed of impervious materials capable of withstanding abrupt and extreme changes in temperature. They shall be of substantial construction, watertight, and equipped with easily removable covers which when bolted in place shall be gastight and watertight.

(Prior Code, § 2.108; Ord. No. 2000-09, 5-15-2000)

Sec. 42-339. Maintenance by owner.

Where installed, all grease, oil, and sand interceptors shall be maintained by the owner, at his expense, in continuously efficient operation at all times and shall be accessible for inspection by city employees at all reasonable times.

(Prior Code, § 2.109; Ord. No. 2000-09, 5-15-2000)

Sec. 42-340. Agreements.

No statement contained in this division shall be construed as preventing any special agreement or arrangement between the city and any industrial concern whereby an industrial waste of unusual strength or character may be accepted by the city for treatment, subject to payment therefore by the industrial concern.

(Prior Code, § 2.110; Ord. No. 2000-09, 5-15-2000)

Secs. 42-341—42-368. Reserved.

DIVISION 6. USER RATES AND CHARGES FOR WASTEWATER DISPOSAL SERVICES

Sec. 42-369. Authorization as public utility.

The system shall, as far as possible, be operated and maintained on a public utility basis as authorized by Public Act No. 94 of 1933 (MCL 141.101 et seq.). Each premises within the city connected to and using facilities of the system shall pay user rates and charges as fixed and established from time to time by the city council.

(Prior Code, § 2.111; Ord. No. 2000-09, 5-15-2000)

Sec. 42-370. User rates and charges determined by resolution.

The user rates and charges for wastewater treatment shall be as tabulated in section 42-374. Charges for wastewater treatment furnished to premises outside the corporate limits of the city shall be fixed by the city council by ordinance or resolution prior to the rendering of such services.

(Prior Code, § 2.112; Ord. No. 2000-09, 5-15-2000)

Sec. 42-371. Miscellaneous users for special consideration.

Where sewage disposal service is furnished to users not connected to the water supply system, or in cases where users make use of large quantities of water which may be discharged into storm sewers or an approved outlet other than the system, or for other miscellaneous users of water for which special consideration should be given, special rates may be fixed by the city council.

(Prior Code, § 2.113; Ord. No. 2000-09, 5-15-2000)

Sec. 42-372. Burden to system consideration for denial.

If the character of sewage from any manufacturing or industrial plant, or from any other building or premises is such that it imposes an unreasonable burden upon the system, in the discretion of the city council, such owner may be required to separately and satisfactorily treat such sewage before being emptied into any public sewer, or the right to discharge said sewage may be denied, if necessary, for the protection of the system, public health and safety.

(Prior Code, § 2.114; Ord. No. 2000-09, 5-15-2000)

Sec. 42-373. Monthly billing along with water service.

Bills shall be payable monthly and simultaneously with payments made for water consumed and/or used and shall be subject to such penalties and/or discounts as may apply to payment of bills for water service.

(Prior Code, § 2.115; Ord. No. 2000-09, 5-15-2000)

Sec. 42-374. Monthly wastewater user service charges.

No free service shall be furnished by the system to the city or to any person, firm or corporation, public or private, or to any public agency or instrumentality.

(1) *Metered users.*

a. *Base rate.* The base rate for metered users is as follows:

Meter Size (in inches)	Service Charge (per month)
$\frac{5}{8}$	\$12.83
$\frac{3}{4}$	\$18.39
1	\$30.61
1½	\$61.21

2	\$97.97
3	\$214.48
4	\$367.44
6	\$765.64
8	\$1,102.48

- b. *Commodity charges.* A charge of \$2.83 per 100 cubic feet of metered water used will be charged each month.

(2) *Unmetered users (flat rate).* Unmetered users will be charged according to the following rate schedule:

- a. Room charge: Count living, dining, bedrooms and kitchens. DO NOT COUNT bathrooms, halls, storage closets. This charge includes lavatories, dishwashing, laundry, and all other domestic uses except bathtubs, showers and toilets.

Rooms	Per Month
1 to 3 rooms, inclusive	\$10.59
4 to 6 rooms, inclusive	\$11.86
7 to 8 rooms, inclusive	\$14.00
Each additional room	\$1.95

- b. For each additional bathtub or shower, add \$5.07 per month.

- c. For each additional toilet, add \$5.58 per month.

(3) *Surcharges.* Additional charges will be in accordance with the following schedule:

Parameter	Parameter Surcharge (per month-per pound)	Base Concentration (in mg/L)
Suspended Solids	\$0.41	215
Biochemical oxygen demand	\$0.60	185
Phosphorus	\$3.96	8
Nitrogen	\$9.27	20
Total organic carbon	\$3.33	600
Chemical oxygen demand	\$1.43	600
Total chlorides	\$0.74	600

(4) *Unmetered users with private water systems.* The monthly wastewater user service charges for those homes, businesses and other customers who do not have city water available, and are using a private water supply system shall be as follows:

- a. All commercial, industrial, and institutional accounts shall have a water meter installed. The meter shall be installed under the direction of the city utilities department. The cost of

installation shall be borne by the owner. The cost of replacement shall be borne by the utilities department.

- b. All residential customers shall be given the option of having a water meter installed as provided for above, or the residential customer shall be billed a flat rate sewer charge equal to the average billing as determined on an annual basis.
- c. The average monthly residential sewer bill, as of July 1, 2022, is a charge of \$32.64.

(5) *Watering adjustment basis.*

- a. For all residential users, charges for sewer for the months of May, June, July, August and September shall be computed for each account based on the average metered water consumption for the base period of the preceding October, November, December January and February. If no previous base history is available, a citywide residential average will be used.
- b. For all other users, a separate meter may be purchased and installed at owner's expense, which will be utilized for watering only with the billing to reflect that amount.

(Prior Code, § 2.116; Ord. No. 2000-09, 5-15-2000; Ord. No. 2001-04, 5-21-2001; Ord. No. 2002-10, 5-6-2002; Ord. No. 2003-12, 5-19-2003; Ord. No. 2004-10, 4-19-2004; Ord. No. 2005-09, 5-2-2005; Ord. No. 2006-07, 5-1-2006; Ord. No. 2007-04, § 1, 5-7-2007; Ord. No. 2008-04, § 1, 4-21-2008; Ord. No. 2009-06, § 1, 4-20-2009; Ord. No. 2010-06, § 1, 4-19-2010; Ord. No. 2011-02, § 1, 4-18-2011; Ord. No. 2015-06, § 1, 4-20-2015; Ord. No. 2016-06, § 1, 5-2-2016; Ord. No. 2018-04, § 1, 4-2-2018; Ord. No. 2019-03, § 1, 5-20-2019; Ord. No. 2020-06, § 1, 5-18-2020; Ord. No. 2021-11, § 1, 5-17-2021, eff. 7-1-2021; Ord. No. 2022-08, § 1, 5-16-2022, eff. 7-1-2022)

Sec. 42-375. Providing service to nonresidents.

- (a) *Contracts for wastewater treatment.* The city has previously entered into contracts with townships adjacent to the city, whereby the city has received consideration in exchange for providing certain of the capital costs, and other indirect costs, of providing wastewater treatment service to users located in those townships. Rates and charges billed for use by the residents of those townships shall be in accordance with the applicable contract.
- (b) *Charges where no other contract compensates the city for indirect costs.* Users who reside outside the city where no contract exists with the governmental unit where such user is located shall pay charges, rates and fees equal to two times the charges, rates and fees imposed on users located within the city.

(Prior Code, § 2.117; Ord. No. 2000-09, 5-15-2000)

Secs. 42-376—42-393. Reserved.

DIVISION 7. POWERS AND AUTHORITY OF INSPECTORS

Sec. 42-394. Authority to enter property.

The duly authorized employees of the city bearing proper credentials and identification shall be permitted to enter upon all properties for the purpose of inspection, observation, measurement, sampling and testing, in accordance with the provisions of this article.

(Prior Code, § 2.119; Ord. No. 2000-09, 5-15-2000)

Sec. 42-395. Discharge records of nondomestic users—Right to copy.

Inspectors or other authorized employees shall have the right to have access to and make copies of any discharge related records of any nondomestic user. This right is in compliance with section 308 of the Clean Water Act.

(Prior Code, § 2.220; Ord. No. 2000-09, 5-15-2000)

Sec. 42-396. Same—Right to request specific information.

The city shall have the right to request and receive certain specific information from all nondomestic users. This information is not limited to those items listed in section 42-485, but may include specific additional information, such as required by the nondomestic user survey, which may be used to classify users or identify potential hazardous waste sources.

(Prior Code, § 2.221; Ord. No. 2000-09, 5-15-2000)

Secs. 42-397—42-420. Reserved.

DIVISION 8. ENFORCEMENT

Sec. 42-421. Collection of rates.

The utilities department is hereby authorized to enforce the payment of charges for sewer service to any premises by discontinuing the water service to such premises and the payment of charges for sewage disposal service to any premises may be enforced by discontinuing either the water service or the sewage disposal service to such premises, or both, and an action of assumpsit may be instituted by the city against the customer. The charges for water services and sewage disposal service, which, under the provisions of Public Act No. 94 of 1933 (MCL 141.101 et seq.), are made a lien on the premises to which furnished, are hereby recognized to constitute such lien; the director shall annually, on June 1, certify all unpaid charges for such services furnished to any premises which, on March 31 preceding, have remained unpaid for a period of six months, to the city assessor who shall place the same on the next tax roll of the city. Such charges so assessed shall be collected in the same manner as general city taxes. In cases where the city is properly notified in accordance with said Act 94, as amended, that a tenant is responsible for water and sewage disposal service charges, no such service shall be commenced or continued to such premises until there has been deposited with the utilities department a sum equal to the last three months bill for sewer service based on the average residential usage for the previous calendar year, such deposit to be in no case less than \$80.00, plus the deposit required in article II of chapter 32 and article III of this chapter. The city will allow up to seven calendar days for payment of such deposit where the tenant has been residing for at least 30 days prior to notification of responsibility. When the water service to any premises is turned off to enforce the payment of water service charges or sewage disposal charges, the service shall not be restored until all delinquent charges have been paid and a deposit as in the case of tenants is made, and there shall be a water turn-on charge as hereby specified. In any other case where in the discretion of the director, the collection of charges for water or sewage disposal service may be difficult or uncertain, the director may require a deposit. Such deposits may be applied against any delinquency, as described above, water or sewage disposal service charges and the application thereof shall not affect the right of the department to turn off the water service and/or sewer service to any premises for any delinquency thereby satisfied. No such deposit shall bear interest and such deposit, or any remaining balance thereof, shall be returned to the customer making the same when he shall discontinue receiving water and sewage disposal service. Said refunds will be made only upon completion of

appropriate refund request forms; the refund amount will be determined and a check drawn within 14 calendar days of the date of refund request.

(Prior Code, § 2.122; Ord. No. 2000-09, 5-15-2000; Ord. No. 2003-12, 5-19-2003)

Sec. 42-422. Water shutoff.

In addition to other remedies provided, the city shall have the right to shut off and discontinue the supply of water to any premises for the nonpayment of sewer rates when due. If such charges are not paid within 30 days after the due date thereof, then water services to such premises shall be discontinued. Water services so discontinued shall not be restored until such time as all charges and penalties are paid. Water shutoff shall be preceded by adequate notification by the utilities department.

(Prior Code, § 2.123; Ord. No. 2000-09, 5-15-2000)

Secs. 42-423—42-442. Reserved.

DIVISION 9. HAULED WASTE

Sec. 42-443. Purpose and policy.

This division sets forth the policy for accepting vehicle transported wastes into the city sewage disposal system.

(Prior Code, § 2.124; Ord. No. 2000-09, 5-15-2000; Ord. No. 2016-03, § 1, 3-21-2016)

Sec. 42-444. Background.

- (a) The sewage disposal system has made it a practice for many years not to accept any hauled waste under any conditions. These wastes have been viewed as potential threats to the treatment plant through the inclusion of toxic, hazardous or other undesirable constituents. Additionally, to provide the degree of control necessary to properly screen and monitor these wastes would require extensive preliminary sampling and lab analysis, review of load manifests and trip tickets and a complete recordkeeping system. Lastly, once wastes are accepted into the system, they and any environmental problems they may cause become the responsibility of the sewage disposal system.
- (b) Requests have come from septage haulers, public institutions, private industrial waste haulers and private industrial and commercial firms. Each request would require a significant amount of time to properly evaluate prior to acceptance or rejection. Requests by waste generators are made for one reason only, to reduce their costs of disposal and, thus, the costs of doing business.

(Prior Code, § 2.125; Ord. No. 2000-09, 5-15-2000; Ord. No. 2016-03, § 1, 3-21-2016)

Sec. 42-445. Management of hauled waste.

The following are waste acceptance criteria:

- (1) The city may accept hauled waste from destinations that originate from within or outside the city. This policy will include accepting leachate from a type II landfill that accepts the solid waste from the city's contracted waste haulers.

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- (2) The city may accept hauled waste by permitted waste haulers only. Anyone from inside or outside the city wishing to discharge any material into the city sewage disposal system via truck will be required to obtain a permit application from the city utilities department located in the municipal complex. The permit will be issued for one specific class or type of waste only. The city shall maintain the right to reject any particular waste hauler if the proposed waste would damage or cause any other problem to the city sewage disposal system.
 - (3) The hauled waste permit will be issued for a maximum period of one year. There will be a permit fee of \$200.00.
 - (4) Applicants will be notified within 30 days as to acceptance or rejection of the permit.

(Prior Code, § 2.126.1; Ord. No. 2000-09, 5-15-2000; Ord. No. 2015-09, § 3, 6-1-2015; Ord. No. 2016-03, § 1, 3-21-2016)

Sec. 42-446. Administration.

To ensure that the integrity of the wastewater treatment plant is maintained, and that a complete record of each hauled waste load is available, the following requirements must be met prior to the acceptance of each load:

- (1) The only site approved for waste hauler discharge will be located at the city wastewater treatment plant. Any discharge to the city sewage disposal system other than the approved site will constitute a violation of section 42-299. The discharge site will be open only during normal working hours that the plant is staffed. Any after hours request will be assessed an additional fee.
- (2) Any hauled waste discharger will be required, prior to discharge into the plant, to submit a copy of the load manifest to the wastewater treatment plant superintendent or his appointed representative. The load manifest shall contain the following information:
 - a. Origin of waste.
 - b. Waste hauler's name, address, etc.
 - c. Date/time of pickup and date/time of discharge off-loading at WWTP.
 - d. Volume of waste.
 - e. A certification statement that the waste is not a RCRA hazardous waste or a prohibited discharge. This certification statement must be signed before any discharge will be allowed.
- (3) The manifest shall be completed in triplicate for the following:
 - a. One copy for the waste hauler;
 - b. One copy for the WWTP; and
 - c. One copy for the utilities billing clerk.

(Prior Code, § 2.126.2; Ord. No. 2000-09, 5-15-2000; Ord. No. 2016-03, § 1, 3-21-2016)

Sec. 42-447. Inspection, sampling and load analysis.

- (a) The city shall have the right to collect samples of the waste for analysis at any time. The purpose of the analysis shall be for billing surcharges and compliance monitoring. All analysis costs shall be paid by the generator of the waste.

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- (b) The city shall maintain the right to deny discharge of any material that may cause any treatment plant interference or may result in a violation of the POTW NPDES permit (pass through), or where the discharge violates a pretreatment standard or requirement. The city shall also have the right to request load analysis before accepting any material from an unknown source.

(Prior Code, § 2.126.3; Ord. No. 2000-09, 5-15-2000; Ord. No. 2016-03, § 1, 3-21-2016)

Sec. 42-448. Compliance with industrial pretreatment.

Waste hauler discharges fall within the scope of the general pretreatment regulations, 40 CFR 403.1(b). Therefore, the local limits and general prohibited discharge standards (40 CFR 403.5(b)) apply as well as any categorical limits if the waste comes from a categorical industry.

(Prior Code, § 2.126.4; Ord. No. 2000-09, 5-15-2000; Ord. No. 2016-03, § 1, 3-21-2016)

Sec. 42-449. Hazardous waste.

The discharge of any hazardous waste, as defined by the Resource Conservation and Recovery Act, 42 USC 6901 et seq. (RCRA), is expressly prohibited. Any violation of this section will result in an immediate fine of \$10,000.00 per occurrence and the discharger shall be held responsible for any fines, damage, litigation cost, etc., that could result from such acts.

User shall also provide hazardous waste notification to the POTW, EPA regional waste management division chief, and the EGLE in writing, which identifies the name of the hazardous waste as set forth in 40 CFR Part 261, the EPA hazardous waste number, and the type of discharge (continuous, batch, or other) as required by R323.2310(15).

(Prior Code, § 2.126.5; Ord. No. 2000-09, 5-15-2000; Ord. No. 2016-03, § 1, 3-21-2016)

Sec. 42-450. Fee schedule and classification.

- (a) The fees charged for approved wastes transported to the city wastewater treatment plant shall be assessed based on classification, volume, strength and treatability characteristics.
- (b) Wastes will be identified by the following classifications:
- (1) Class I: septage from domestic origins;
 - (2) Class II: septage from non-domestic origins;
 - (3) Class III: leachate from type II landfills only;
 - (4) Class IV: industrial/commercial wastes, groundwater decontamination project wastewaters, underground tank removal waste products and other nondramatic wastes as defined by federal, state and local laws.
- (c) The manifest shall be completed in triplicate for the following:
- (1) One copy for the waste hauler;
 - (2) One copy for the WWTP; and
 - (3) One copy for the utilities billing clerk.
- (d) Bills will be provided on a monthly basis and will be due within 30 days of the billing date. Billings in arrears shall be cause to void the permit.

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- (e) In cases where circumstances warrant, the city may require a deposit as prepayment. Such deposit shall be equal to the total estimated costs plus \$25.00. Any balance shall be returned at the conclusion of the permit period or of the project.

(Prior Code, § 2.127; Ord. No. 2000-09, 5-15-2000; Ord. No. 2016-03, § 1, 3-21-2016)

Secs. 42-451—42-468. Reserved.

DIVISION 10. INDUSTRIAL MONITORING AND PRETREATMENT

Sec. 42-469. Purpose and policy.

- (a) This division sets forth uniform requirements for direct and indirect contributors into the wastewater and treatment system, for the city and enables the city to comply with all applicable state and federal laws required by the Clean Water Act of 1977 and the general pretreatment regulations 40 CFR 403, as found in part 400 to 424, dated July 1, 1991.
- (b) The objectives of this division are:
- (1) To prevent the introduction of pollutants into the system which will interfere with the operation of the system or contaminate the resulting sludge;
 - (2) To prevent the introduction of pollutants into the system which will pass through the system, inadequately treated, into receiving waters or the atmosphere or otherwise be incompatible with the system;
 - (3) To improve the opportunity to recycle and reclaim wastewaters and sludges from the system; and
 - (4) To provide for equitable distribution of the cost of the system.
- (c) This division provides for the regulation of direct and indirect contributors to the system through the issuance of permits to certain nondomestic users and through enforcement of general requirements for other users, authorizes monitoring and enforcement activities, requires user reporting, assumes that existing user's capacity will not be preempted, and provides for the setting of fees for the equitable distribution of costs resulting from the program established herein.

(Prior Code, § 2.131; Ord. No. 2000-09, 5-15-2000)

Sec. 42-470. Interjurisdictional agreement.

This section acknowledges the existence of an interjurisdictional agreement between the City of Cadillac, Wexford County DPW, and the Townships of Haring, Selma, Cherry Grove and Clam Lake for the operation of the industrial pretreatment program in these townships. This interjurisdictional agreement gives the city the authority to regulate and monitor industrial wastewater discharged into its treatment facility.

(Prior Code, § 2.132; Ord. No. 2000-09, 5-15-2000)

Sec. 42-471. Federal categorical pretreatment standards.

Upon the federal categorical pretreatment standards for a particular industrial subcategory, the federal standard, if more stringent than limitations imposed under this division for sources in that subcategory, shall

immediately supersede the limitations imposed under this division. The director shall notify all affected users of the applicable reporting requirements under 40 CFR 403.12.

(Prior Code, § 2.133; Ord. No. 2000-09, 5-15-2000)

Sec. 42-472. Modification of specific limits.

Where the system achieves consistent removal of pollutants limited by federal pretreatment standards, the city may apply to the approval authority for modification of specific limits in the federal pretreatment standards in accordance with the procedure in 40 CFR 403.7. The city may then modify pollutant discharge limits in the federal pretreatment standards if the requirements contained in 40 CFR 403.7 are fulfilled and prior approval from the approval authority is obtained.

(Prior Code, § 2.134; Ord. No. 2000-09, 5-15-2000)

Sec. 42-473. City's right to establish more stringent limitations.

The city reserves the right to establish, by ordinance, more stringent limitations or requirements on discharges to the wastewater disposal system if deemed necessary to comply with the objectives presented in section 42-469.

(Prior Code, § 2.135; Ord. No. 2000-09, 5-15-2000)

Sec. 42-474. Dilution not adequate treatment.

No user shall increase the use of process water or, in any way, attempt to dilute a discharge as a partial or complete substitute for adequate treatment to achieve compliance with the limitations contained in the federal categorical pretreatment standards, except where expressly authorized to do so by an applicable pretreatment standard or requirement, or in any other pollutant-specific limitation developed by the city or state.

(Prior Code, § 2.136; Ord. No. 2000-09, 5-15-2000)

Sec. 42-475. Protection from accidental discharges and operational upsets required.

Each user shall provide protection from accidental discharge of prohibited materials or other substances prohibited by this division. Facilities to prevent accidental discharge of prohibited materials shall be provided and maintained at the owner or user's own cost and expense. Detailed plans showing facilities and operating procedures to provide this protection shall be submitted to the city for review, and shall be approved by the city before construction of the facility. All existing users shall complete such a plan within 180 days of enactment of the ordinance from which this division is derived. Review and approval of such plans and operating procedures shall not relieve the industrial user from the responsibility to modify the user's facility as necessary to meet the requirements of this division. In the case of an accidental discharge or an operational upset, it is the responsibility of the user to immediately telephone and notify the POTW of the incident. The notification shall include the location of the discharge, the type of waste, concentration and volume, cause of discharge, the date and time of the discharge, and if not corrected, the anticipated period it will continue, and corrective actions.

Affirmative defense:

1) An upset shall constitute an affirmative defense to an action brought for noncompliance with categorical pretreatment standards if the provisions of (2) below are met.

(2) A nondomestic user who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs or other relevant evidence, that all of the following provisions apply:

(a) An upset occurred and the nondomestic user can identify the cause or causes of the upset.

(b) The facility was at the time being operated in a prudent and workmanlike manner and in compliance with applicable operation and maintenance procedures.

The above is in addition to submission of the information already stated as required in the upset reporting.

(Prior Code, § 2.137; Ord. No. 2000-09, 5-15-2000)

Sec. 42-476. Written report following accidental discharge; liability for damage.

Within five days following an accidental discharge or operational upset, the user shall submit to the director a detailed written report describing the cause of the discharge, the date and time of the discharge, and if not corrected, the anticipated period it will continue, and the measures to be taken by the user to prevent similar future occurrences. Such notification shall not relieve the user of any expense, loss, damage, or other liability which may be incurred as a result of damage to the POTW, fish kills, or any other liability which may be imposed by this division or other applicable law.

(Prior Code, § 2.137.1; Ord. No. 2000-09, 5-15-2000)

Sec. 42-477. Notification procedure posted.

A notice shall be permanently posted on the user's bulletin board or other prominent location advising employees whom to call in the event of a dangerous discharge. Employers shall ensure that all employees who may cause or suffer such a dangerous discharge to occur are advised of the emergency notification procedure.

(Prior Code, § 2.137.2; Ord. No. 2000-09, 5-15-2000)

Sec. 42-478. Discharge limitations; purpose.

In addition to the wastewater discharge prohibitions listed in division 5 of this article, the city shall enforce the limitation specified by any pertinent categorical pretreatment standards and any city specific local limits.

(Prior Code, § 2.138.1; Ord. No. 2000-09, 5-15-2000)

Sec. 42-479. Categorical pretreatment standards.

All federal categorical industries, as identified in the definition of categorical pretreatment standards, section 42-241, shall be required to meet the pretreatment discharge limits for their classification as described in 40 CFR 403.6.

- A. When wastewater subject to a categorical pretreatment standard is mixed with wastewater not regulated by the same Standard, the Superintendent shall impose an alternate limit in accordance with 40 CFR 403.6(e)
- B. When a categorical pretreatment standard is expressed only in terms of pollutant concentrations, an Industrial User may request that the city convert the limits to equivalent mass limits. The determination to convert concentration limits to mass limits is within the discretion of the Superintendent. The city may establish equivalent mass limits only if the Industrial User meets all the conditions set forth below:

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- C. To be eligible for equivalent mass limits, an industrial user must:
- a. Employ, or demonstrate that it will employ, water conservation methods and technologies that substantially reduce water use during the term of its individual wastewater discharge permit;
 - b. Currently use control and treatment technologies adequate to achieve compliance with the applicable categorical Pretreatment Standard, and not have used dilution as a substitute for treatment;
 - c. Provide sufficient information to establish the facility's actual average daily flow rate for all wastestreams, based on data from a continuous effluent flow monitoring device, as well as the facility's long-term average production rate. Both the actual average daily flow rate and the long-term average production rate must be representative of current operating conditions;
 - d. Not have daily flow rates, production levels, or pollutant levels that vary so significantly that equivalent mass limits are not appropriate to control the Discharge; and
 - e. Have consistently complied with all applicable categorical Pretreatment Standards during the period prior to the Industrial User's request for equivalent mass limits.
- D. An industrial user subject to equivalent mass limits must:
- a. Maintain and effectively operate control and treatment technologies adequate to achieve compliance with the equivalent mass limits;
 - b. Continue to record the facility's flow rates through the use of a continuous effluent flow monitoring device;
 - c. Continue to record the facility's production rates and notify the Superintendent whenever production rates are expected to vary by more than 20 percent from its baseline production rates. Upon notification of a revised production rate, the Superintendent will reassess the equivalent mass limit and revise the limit as necessary to reflect changed conditions at the facility; and
 - d. Continue to employ the same or comparable water conservation methods and technologies as those implemented pursuant to (C) (a) of this Section so long as it discharges under an equivalent mass limit.
- E. When developing equivalent mass limits, the Superintendent:
- a. Will calculate the equivalent mass limit by multiplying the actual average daily flow rate of the regulated process(es) of the Industrial User by the concentration-based Daily Maximum and Monthly Average Standard for the applicable categorical Pretreatment Standard and the appropriate unit conversion factor;
 - b. Upon notification of a revised production rate, will reassess the equivalent mass limit and recalculate the limit as necessary to reflect changed conditions at the facility; and
 - c. May retain the same equivalent mass limit in subsequent individual wastewater discharger permit terms if the Industrial User's actual average daily flow rate was reduced solely as a result of the implementation of water conservation methods and technologies, and the actual average daily flow rates used in the original calculation of the equivalent mass limit were not based on the use of dilution as a substitute for treatment. The Industrial User must also be in compliance with Section 42-500 regarding the prohibition of bypass.

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- F. Compliance by existing sources with categorical pretreatment standards shall be attained within 3 years of the date the standard is effective, unless a shorter compliance time is specified in the appropriate subpart of 40 CFR Chapter I, Subchapter N.
- G. New sources shall install, have in operating condition, and start up all pollution control equipment required to meet applicable pretreatment standards before beginning to discharge.

(Prior Code, § 2.138.2; Ord. No. 2000-09, 5-15-2000)

Sec. 42-480. Local limits.

The city retains the right to publish specific local limits as listed in section 42-481 for the purpose of protecting the POTW from harmful nondomestic discharges. These local limits are generated under the authority of 40 CFR 403.5. The local discharge limits shall be deemed pretreatment standards and supersede categorical standards if they are more restrictive.

(Prior Code, § 2.138.3; Ord. No. 2000-09, 5-15-2000)

Sec. 42-481. Numerical local limits.

Numerical local limits are derived using development rationale outlined by U.S. EPA contract document 68-01-7043 and the city utilities department's local discharge limits development rationale. The numerical values derived by the above methods are listed in the table below and are subject to regulatory modification. The city has the authority to convert mass limits to concentration limits as defined in 40 CFR 403.6c.

POLLUTANT	Proposed Local Limit (Daily Max)
Arsenic	3 µg/L
Benzidine	0.6 µg/L
Beryllium	17 µg/L
Cadmium	2 µg/L
Chromium	369 µg/L
Copper	40 µg/L
Cyanide, Available	4 µg/L
Lead	26 µg/L
Mercury	ND*
Molybdenum	33 µg/L
Nickel	75 µg/L
Phenol	1,737 µg/L
Selenium	13 µg/L
Silver	3 µg/L
Zinc	110 µg/L

BOD5	350 mg/L
TSS	850 mg/L
Ammonia	40 mg/L
Total Phosphorus	11 mg/L

* Monitoring for mercury shall be in accordance with the following test methods: The discharge of mercury at or above the quantification level of 0.2 ug/l shall represent an exceedance of the local limit. Mercury sampling procedures, preservation and handling, and analytical protocol for compliance monitoring shall be in accordance with U.S. EPA Method 245.1, unless screening using Method 1631 is required by the city. The quantification level shall be 0.2 ug/l for Method 245.1 or 0.5 nanograms/liter (ng/l) for Method 1631, unless higher levels are appropriate due to sampling matrix interference.

(Prior Code, § 2.138.4; Ord. No. 2000-09, 5-15-2000)

Sec. 42-482. Recovery of cost program.

It is the purpose of this section to provide for the recovery of costs from users of the system for the implementation of the program established herein. The applicable charges for fees shall be set forth in the city's schedule of charges and fees.

(Prior Code, § 2.139.1; Ord. No. 2000-09, 5-15-2000)

Sec. 42-483. Charges and fees.

- (a) The city may adopt charges and fees which may include fees for:
- (1) Reimbursement of costs of setting up and operating the city's pretreatment program;
 - (2) Monitoring, inspections and surveillance procedures;
 - (3) Reviewing accidental discharge procedures and construction;
 - (4) Permit applications;
 - (5) Filing appeals;
 - (6) Consistent removal, by the city, of pollutants otherwise subject to federal pretreatment standards;
 - (7) As the city may deem necessary to carry out the requirements contained herein.
- (b) These fees relate solely to the matters covered by this division and are separate from all other fees chargeable by the city.

(Prior Code, § 2.139.2; Ord. No. 2000-09, 5-15-2000)

Sec. 42-484. Wastewater contribution permit—Users identified.

All significant industrial users proposing to connect or to contribute to the POTW shall obtain a wastewater discharge permit before connecting to or contributing to the POTW. All existing significant industrial users connected to or contributing to the POTW shall obtain a wastewater contribution permit within 180 days after the effective date of the ordinance from which this division is derived. Significant industrial user shall be taken to include all those identified under the definition of significant industrial user in section 42-241 and any other source whom the city feels has any potential to deliver any hazardous or toxic waste to the POTW.

(Prior Code, § 2.140.1; Ord. No. 2000-09, 5-15-2000)

Sec. 42-485. Same—Application.

- (a) Users required to obtain a wastewater contribution permit shall complete and file with the city, an application in the form prescribed by the city. Proposed new users shall apply at least 90 days prior to connecting to or contributing to the POTW. Existing users shall submit reissuance application at least 90 days prior to expiration date. In support of the application, the user shall submit, in units and terms appropriate for evaluation, the following information:
- (1) Name, address and location, (if different from the address);
 - (2) SIC number according to the Standard Industrial Classification Manual, Bureau of the Office of Management and Budget, 1972, as amended;
 - (3) Wastewater constituents and characteristics, including but not limited to, those mentioned in section 42-337(b) as determined by a reliable analytical laboratory; sampling and analysis shall be performed in accordance with procedures established by the EPA pursuant to section 304(g) of the act and contained in 40 CFR 136 as amended;
 - (4) Average daily and 30-minute peak wastewater flow rates, including daily, monthly and seasonal variations if any;
 - (5) Site plans, floor plans, mechanical and plumbing plans and details to show all sewers, sewer connections, and appurtenances by the size, location and elevation;
 - (6) Description of activities, facilities and plant processes on the premises including all materials which are or could be discharged;
 - (7) Where known, the nature and concentration of any pollutants in the discharge which are limited by any city, state, of federal pretreatment standard, and a statement regarding whether or not the pretreatment standards are being met on a consistent basis and if not, whether additional operation and maintenance (O & M) and/or additional pretreatment is required for the user to meet applicable pretreatment standards;
 - (8) If additional pretreatment and/or O & M will be required to meet the pretreatment standards, the shortest schedule by which the user will provide such additional pretreatment. The completion date in said schedule shall not be later than the compliance date established for the applicable pretreatment standard. The following conditions shall apply to this schedule:
 - a. The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the user to meet applicable pretreatment standards (e.g., hiring an engineer, completing preliminary plans, completing final plans, executing contract for major components, commencing construction, completing construction, etc.).
 - b. No increment referred to in subsection (a)(8)a of this section, shall exceed nine months.
 - (9) Each product produced by type, amount, process or processes and rate or production;
 - (10) Type and amount of raw materials processed (average and maximum per day);
 - (11) Number and type of employees, and hours of operation of the plant and proposed or actual hours of operation of the pretreatment system;
 - (12) Any other information as may be deemed by the city to be necessary to evaluate the permit application.

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- (b) The city will evaluate the data furnished by the user and may require additional information. After evaluation and acceptance of the data furnished, the city may issue a wastewater contribution permit subject to terms and conditions provided herein.

(Prior Code, § 2.140.2; Ord. No. 2000-09, 5-15-2000)

Sec. 42-486. Same—Modifications.

Within nine months of the promulgation of a national categorical pretreatment standard, the wastewater contribution permit of users subject to such standards shall be revised to require compliance with such standard within the time frame prescribed by such standard. Where a user, subject to a national categorical pretreatment standard, has not previously submitted an application for a wastewater contribution permit as required by section 42-485, the user shall apply for a wastewater contribution permit within 180 days after the promulgation of the applicable national categorical pretreatment standard. In addition, the user with an existing wastewater contribution permit shall submit to the director within 180 days after the promulgation of an applicable federal categorical pretreatment standard, the information required by section 42-485(a)(8) and (9).

(Prior Code, § 2.140.3; Ord. No. 2000-09, 5-15-2000)

Sec. 42-487. Discharge conditions.

Wastewater discharge shall be expressly subject to provisions of this division and all other applicable regulations, user charges and fees established by the city. Permits may contain the following:

- (1) Designation of types and sizes of containment facilities to control process spills to the designated sewers;
- (2) Limits on the average and maximum wastewater constituents and characteristics;
- (3) Limits on the average and maximum rate and time of discharge or requirements for flow regulations and equalization;
- (4) Requirements for the installation and maintenance of inspection and sampling facilities;
- (5) Specifications for monitoring programs which may include sampling locations, frequency of sampling, number, types and standards for tests and reporting schedule;
- (6) Compliance schedules;
- (7) Requirements for submission of technical reports or discharge reports (see sections 42-492 through 42-495);
- (8) Requirements for maintaining and retaining plant records, relating to wastewater discharge as specified by the city, and affording city access thereto;
- (9) Requirements for advance notification of the city of any new introduction of wastewater constituents or any substantial change in the volume or character of the wastewater constituents being introduced into the wastewater treatment system;
- (10) Requirements for notification of slug discharges per MAC R323.2310(5);
- (11) Other conditions as deemed appropriate by the city to ensure compliance with this division.

(Prior Code, § 2.140.4; Ord. No. 2000-09, 5-15-2000)

Sec. 42-488. Permit duration.

Permits shall be issued for a specific time period, not to exceed two years. A permit may be issued for a period less than a year or may be stated to expire on a specific date. The terms and conditions of the permit may be subject to modification by the city during the term of the permit as limitations or requirements as identified in section 42-487 are modified or other just cause exists. The user shall be informed of any proposed changes in this permit at least 30 days prior to the effective date of change. Any changes or new conditions in the permit shall include a reasonable time schedule for compliance.

(Prior Code, § 2.140.5; Ord. No. 2000-09, 5-15-2000)

Sec. 42-489. Discharge permits nontransferable.

Wastewater discharge permits are issued to a specific user for a specific operation. A wastewater discharge permit shall not be reassigned or transferred or sold to a new owner, new user, different premises, or a new or changed operation without the approval of the city. Any succeeding owner or user shall also comply with the terms and conditions of the existing permit.

(Prior Code, § 2.140.6; Ord. No. 2000-09, 5-15-2000)

Sec. 42-490. Monitoring.

The city shall retain the right to perform the required industrial monitoring and analysis as given in 40 CFR 403.12(g), or require the industry to meet the permit requirements. All monitoring data shall be obtained through appropriate and representative sampling and analysis in accordance with 40 CFR Part 136.

The Wastewater Superintendent shall have the right to enter the premises of any User to determine whether the User is complying with all requirements of this ordinance and any individual wastewater discharge permit or order issued hereunder. Users shall allow the Superintendent ready access to all parts of the premises for the purposes of inspection, sampling, records examination and copying, and the performance of any additional duties.

A. Where a User has security measures in force which require proper identification and clearance before entry into its premises, the User shall make necessary arrangements with its security guards so that, upon presentation of suitable identification, the Superintendent shall be permitted to enter without delay for the purposes of performing specific responsibilities.

B. The Superintendent shall have the right to set up on the User's property, or require installation of, such devices as are necessary to conduct sampling and/or metering of the User's operations.

C. The Superintendent may require the User to install monitoring equipment as necessary. The facility's sampling and monitoring equipment shall be maintained at all times in a safe and proper operating condition by the User at its own expense. All devices used to measure wastewater flow and quality shall be calibrated annually to ensure their accuracy.

D. Any temporary or permanent obstruction to safe and easy access to the facility to be inspected and/or sampled shall be promptly removed by the User at the written or verbal request of the Superintendent and shall not be replaced. The costs of clearing such access shall be borne by the User.

E. Unreasonable delays in allowing the Superintendent access to the User's premises shall be a violation of this ordinance.

(Prior Code, § 2.140.7; Ord. No. 2000-09, 5-15-2000)

Sec. 42-491. Penalty provision.

A permitted user shall comply with all of the provisions of its permit. A violation of any provision of a permit is a violation of this division, subject to the penalty, damage, surcharge, and other enforcement provisions of Divisions 10 and 11.

(Prior Code, § 2.140.8; Ord. No. 2000-09, 5-15-2000)

Sec. 42-492. Reports by categorical industrial users

A. Baseline Monitoring Reports. Within 180 days after the effective date of a categorical pretreatment standard, or 180 days after the final administrative decision made upon a category determination submission under R 323.2311(2), whichever is later, an existing industrial user subject to the categorical pretreatment standards and which currently discharges or is scheduled to discharge to the POTW shall submit a report to the WWTP superintendent as required by R 323.2310(2). At least 90 days prior to commencement of discharge, new sources and sources that become industrial users subsequent to the promulgation of an applicable categorical pretreatment standard shall submit the reports to the WWTP superintendent as required by R 323.2310(2). All of the following information shall be submitted pursuant to this rule:

(a) The nondomestic user shall submit the name and address of the facility including the name of the operator and owners.

(b) The nondomestic user shall submit a list of any environmental control permits held by or for the facility.

(c) The nondomestic user shall submit a brief description of the nature, average rate of production, and standard industrial classification of the operation or operations carried out by the nondomestic user. The description should include a facility drawing and schematic process diagram that indicates points of discharge to the publicly owned treatment works and from which processes the discharges originate.

(d) The nondomestic user shall submit information showing the measured average daily and maximum daily flow, in gallons per day, to the publicly owned treatment works from each of the following:

(i) Regulated process streams.

(ii) Other streams as necessary to allow use of the combined wastestream formula specified in R323.2311(6). The control authority may allow for verifiable estimates of these flows where justified by cost or feasibility considerations.

(e) All of the following information shall be provided with respect to the measurement of pollutants:

(i) The nondomestic user shall identify the pretreatment standards, including state or local standards, applicable to each regulated process.

(ii) In addition, the nondomestic user shall submit the results of sampling and analysis identifying the nature and concentration or mass, where required by the standard or control authority, of regulated pollutants in the discharge from each regulated process. Both daily maximum and average concentration or mass, where required, shall be reported. The sample shall be representative of daily operations.

(iii) A minimum of 4 grab samples shall be used for pH, cyanide, total phenols, oil and grease, sulfide, and volatile organics. For all other pollutants, 24-hour composite samples shall be obtained through flow-proportional composite sampling techniques where feasible. The control authority may waive flow-proportional composite sampling for any nondomestic user that demonstrates that flow proportional sampling is infeasible. In such cases, samples may be obtained through time-proportional composite sampling techniques or through a minimum of 4 grab samples where the user demonstrates that this will provide a representative sample of the effluent being discharged.

(iv) With the exception of the pollutants specified in paragraph (iii) of this subdivision, the user shall take a minimum of 1 representative sample to compile the data necessary to comply with the requirements of this subrule.

(v) Samples should be taken immediately downstream from pretreatment facilities if the facilities exist or immediately downstream from the regulated process if pretreatment facilities do not exist. If other wastewaters are mixed with the regulated wastewater before pretreatment, the nondomestic user should measure the flows and concentrations necessary to allow use of the combined wastestream formula specified in R323.2311(7) to evaluate compliance with the pretreatment standards. Where an alternate concentration or mass limit has been calculated in accordance with R 323.2311(5), the adjusted limit and supporting data shall be submitted to the control authority.

(vi) Sampling and analysis shall be performed in accordance with the techniques prescribed in 40 CFR Part 136 (1992). Where 40 CFR Part 136 (1992) does not contain sampling or analytical techniques for the pollutant in question, or where the EPA determines that the Part 136 (1992) sampling and analytical techniques are inappropriate for them pollutant in question, sampling and analysis shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the publicly owned treatment works or other parties, approved by the EPA.

(vii) The city may allow the submission of a baseline report that utilizes only historical data if the data provides information sufficient to determine the need for industrial pretreatment measures.

(viii) The baseline report shall indicate the time, date, and place of sampling and the methods of analysis and shall certify that the sampling and analysis is representative of normal work cycles and expected pollutant discharges to the publicly owned treatment works.

(f) A statement, reviewed by an authorized representative of the nondomestic user and certified to by a qualified professional, indicating whether pretreatment standards are being met on a consistent basis and, if not, whether additional operation and maintenance or additional pretreatment is required for the nondomestic user to meet the pretreatment standards and requirements.

(g) If additional pretreatment or operation and maintenance will be required to meet the pretreatment standards, the shortest schedule by which the nondomestic user will provide such additional pretreatment or operation and maintenance. The completion date in the schedule shall not be later than the compliance date established for the applicable pretreatment standard. All of the following conditions shall apply to compliance schedules:

(i) The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the nondomestic user to meet the applicable categorical pretreatment standards.

B. Reports on compliance with categorical pretreatment standard deadline. Within 90 days following the date for final compliance with applicable categorical pretreatment standards or, in the case of a new source, following commencement of the discharge to the POTW, any industrial user subject to categorical pretreatment standards and requirements shall submit the reports required by R 323.2310(2) to the WWTP Superintendent.

All of the following provisions apply to periodic reports on continued compliance:

(a) Any nondomestic user subject to a categorical pretreatment standard after the compliance date of the pretreatment standard or, in the case of a new source, after commencement of the discharge into the publicly owned treatment works shall submit, to the city semiannually, unless required more frequently in the pretreatment standard or by the city or EGLE, a report indicating the nature and concentration of pollutants in the effluent that are limited by the categorical pretreatment standards. In addition, the report shall include a record of measured or appropriately estimated average and maximum daily flows for the reporting period for the discharge reported, except that the control authority may require more detailed reporting of flows.

(b) Where the control authority has imposed mass limitations on nondomestic users as provided for by R323.2311(5), the report shall indicate the mass of pollutants regulated by pretreatment standards in the discharge from the nondomestic user.

(c) For nondomestic users subject to equivalent mass or concentration limits established by the control authority in accordance with the procedures in R 323.2311(5), the report shall contain a reasonable measure of the nondomestic user's long-term production rate. For all other nondomestic users subject to categorical pretreatment standards expressed only in terms of allowable pollutant discharge per unit of production, or other measure of operation, the report shall include the nondomestic user's actual average production rate for the reporting period.

C. Periodic reports on continued compliance. Any industrial user subject to a categorical pretreatment standard, after the compliance date of the categorical pretreatment standard, or, in the case of a new source, after commencement of the discharge into the public sewer or POTW, shall submit the periodic reports to the superintendent required by R 323.2310(4). These periodic reports shall be submitted at least once every six months (during the months of June and December unless alternate months are specified by the WWTP superintendent), unless required more frequently by the applicable pretreatment standard or by the WWTP superintendent.

Sec. 42-493. Reports required for significant industrial users not subject to categorical pretreatment standards

All significant industrial users not subject to categorical pretreatment standards shall submit to the POTW periodic reports providing information regarding the quality and quantity of wastewater and pollutants discharged into the POTW. These reports shall be based on sampling and analysis performed in the period covered by the report, and performed in accordance with the sampling, analysis and monitoring requirements provided in 40 CFR Part 136. The reports shall be submitted at least once every six months for the preceding six months (during the months of June and December unless alternate months are specified by the WWTP superintendent), unless required more frequently by the WWTP superintendent. The reports shall be submitted in a format required by the POTW and shall include, without limitation, the volume of wastewater; the concentration of pollutants; the names of all persons responsible for operating and maintaining any pretreatment equipment, pretreatment processes, or responsible for wastewater management at the user's facilities, with a brief description of each person's duties; information regarding materials or substances which may cause interference or pass-through; and any other information deemed necessary by the WWTP Superintendent to assess and ensure compliance with applicable discharge requirements or to safeguard to operation of the POTW.

Sec. 42-495. Signatory and certification requirements.

The reports required by Sections 42-492 and 42-493 shall be signed and certified as follows:

- (1) Required signatures. The reports shall be signed by an authorized representative as defined in Section 42-241 of this article.
- (2) Required certification. The reports shall include the following certification statement:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to ensure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the persons who manage the system, or those persons directly responsible for gathering the information, the information submitted, is to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

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- (3) Exception. If the POTW elects to performed instead of the user all or any portion of the sampling or analysis otherwise required for a report or notification, the user will not be required to comply with the certification requirements for the sampling and analysis (or portion thereof) performed by the POTW.

Sec. 42-494. Maintenance of records.

Any nondomestic user subject to the sampling, analysis, or reporting requirements in this division, including reports under 40 CFR 403.12, as amended, and R 323.2310, shall maintain copies of the reports and records pertaining to those reports. Such reports and records shall be retained by such user, and by the city, for at least three years. This period shall be extended during the course of any unresolved litigation regarding the discharges of the user or the POTW pretreatment program or when requested by the city director, the state director, or U.S. EPA.

(Prior Code, § 2.141.3; Ord. No. 2000-09, 5-15-2000)

Sec. 42-495. Control authority program control.

- (a) Where the city maintains the monitoring and sampling program and collects required data, including flow and production information where required, the industrial user shall not be required to submit the reports outlined in 40 CFR 403.12, at the city's discretion.
- (b) All industrial users are required to report to the city substantial changes in discharge as listed in (40 CFR 403.12(j)).

(Prior Code, § 2.141.4, 2.141.5; Ord. No. 2000-09, 5-15-2000)

Sec. 42-496. Monitoring facilities.

- (a) The city shall require to be provided and operated at the user's own expense, monitoring facilities to allow inspection, sampling, and flow measurement of the building sewer and/or internal drainage systems. The monitoring facility should normally be situated on the user's premises, but the city may, when such location would normally be impractical or cause undue hardship on the user, allow the facility to be constructed in the public street or sidewalk area, located so that it will not be obstructed by landscaping or parked vehicles.
- (b) There shall be ample room in or near such sampling manhole or facility to allow accurate sampling and preparation of samples for analysis. The facility, sampling, and measuring equipment shall be maintained at all times in a safe and proper operating condition at the expense of the user.
- (c) Whether constructed on public or private property, the sampling and monitoring facilities shall be provided in accordance with the city's requirements and all applicable local construction standards and specifications. Construction shall be completed within 90 days following written notification by the city.

(Prior Code, § 2.142; Ord. No. 2000-09, 5-15-2000)

Sec. 42-497. Inspection and sampling.

The city shall inspect the facilities of any user to ascertain whether the purpose of this division is being met and all requirements are being complied with. Persons or occupants of premises where wastewater is created or discharged shall allow the city or their representative ready access at all reasonable times to all parts of the premises for the purposes of inspection, sampling, records examination or in the performance of any of their duties. The Approval Authority shall have the right to set up on the user's property such devices as are necessary to conduct sampling, inspection, compliance monitoring and/or metering operations. Where a user has security

measures in force which would require proper identification and clearance before entry into their premises, the user shall make necessary arrangements with their security guards so that upon presentation of suitable identification, personnel from the city, approval authority and EPA will be permitted to enter, without delay, for the purposes of performing their specific responsibilities.

(Prior Code, § 2.143; Ord. No. 2000-09, 5-15-2000)

Sec. 42-498. Pretreatment; plans required.

Users shall provide necessary wastewater treatment as required to comply with this division and shall achieve compliance with all federal categorical pretreatment standards within the time limitations as specified by the federal pretreatment regulations. Any facilities required to pretreat wastewater to a level acceptable to the city shall be provided, operated, and maintained at the user's expense. Detailed plans showing the pretreatment facilities and operating procedures shall be submitted to the city for review, and shall be acceptable to the city before construction of the facility. The review of such plans and operating procedures will in no way relieve the user from the responsibility of modifying the facility as necessary to produce an effluent acceptable to the city under the provisions of this division. Any subsequent changes in the pretreatment facilities or method of operation shall be reported to and be acceptable to the city prior to the user's initiation of the changes. Within five days after completing installation of new pretreatment facilities, all Industrial Users shall notify the Superintendent in writing of the time and date when it intends to commence operation of new facilities and identify the person who will conduct any testing to be performed. Testing which much be performed to establish discharge compliance must be completed prior to being placed in regular operation.

(Prior Code, § 2.144.1; Ord. No. 2000-09, 5-15-2000)

Sec. 42-499. Bypass notice requirements.

If a user knows in advance of the need for a bypass, it shall submit prior notice to the POTW if possible, at least ten days before the date of the bypass. A user shall submit oral notice of an unanticipated bypass that exceeds applicable categorical pretreatment standards and other applicable limits to the POTW immediately when the time the user becomes aware of the bypass. A written submission shall also be provided within five days of the time the user becomes aware of the bypass. The written submission shall include a description of the bypass and its cause, the duration including times and dates, and if ongoing, the anticipated time the bypass will continue, and the steps taken or planned to reduce, eliminate and prevent reoccurrence of the bypass.

(Prior Code, § 2.144.2; Ord. No. 2000-09, 5-15-2000)

Sec. 42-500. Bypass prohibited; exceptions.

Bypass is prohibited, and the POTW may take enforcement action against a user for a bypass unless:

- (1) The bypass was unavoidable to prevent loss of life, personal injury, or severe property damage;
- (2) There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate backup equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventative maintenance; and
- (3) The user submitted notices as required under section 42-499.

(Prior Code, § 2.144.3; Ord. No. 2000-09, 5-15-2000)

Sec. 42-501. Notice by user of violation of pretreatment standards

If sampling performed by an industrial user to demonstrate compliance with applicable pretreatment standards or local limits indicates a violation, the user shall notify the POTW within 24 hours of becoming aware of the violation. The nondomestic user shall also repeat the sampling and analysis and submit the results of the repeat analysis to the POTW within 30 days after becoming aware of the violation; however, the nondomestic user is not required to resample if the city performs sampling at the nondomestic user at a frequency of at least once per month or if the city performs sampling at the nondomestic user between the time when the nondomestic user performs its initial sampling and the time when the nondomestic user receives the results of the sampling.

Sec. 42-502. Confidential information.

- (a) Information and data on a user obtained from reports, questionnaires, permit applications, permits and monitoring programs and from inspections shall be available to the public or other governmental agency without restriction unless the user specifically requests and is able to demonstrate to the satisfaction of the city that the release of such information would divulge information, processes or methods of production entitled to protection as trade secrets of the user.
- (b) When requested by the person furnishing a report, the portions of a report which might disclose trade secrets or secret processes shall not be made available for inspection by the public, but shall be made available upon written request to governmental agencies for uses related to this division. The National Pollutant Discharge Elimination System (NPDES) permit, state disposal system permit and/or the pretreatment programs; provided, however, that such portions of a report shall be available for use by the state or any state agency in judicial review or enforcement proceedings involving the person furnishing the report. Wastewater constituents and characteristics will not be recognized as confidential information.
- (c) Information accepted by the city as confidential shall not be transmitted to any governmental agency or to the general public by the city until and unless a ten-day notification is given to the user.

(Prior Code, § 2.145; Ord. No. 2000-09, 5-15-2000)

Sec. 42-503. Emergency suspension of service

- (a) The city may immediately suspend a User's discharge, after informal notice to the User, whenever such suspension is necessary, in the opinion of the city, in order to stop an actual or threatened discharge which presents or may present an imminent or substantial endangerment to the health or welfare of persons. The Wastewater Superintendent may also immediately suspend a User's discharge, after notice and opportunity to respond, that threatens to interfere with the operation of the POTW, or which presents or may present, an endangerment to the environment.
- (b) Any person notified of a suspension of the wastewater treatment service and/or the wastewater contribution permit shall immediately stop or eliminate the contribution. In the event of a failure of the person to comply voluntarily with the suspension order, the city shall take such steps as deemed necessary including immediate severance of the sewer connection, to prevent or minimize damage to the POTW system or endangerment to any individuals. The city shall reinstate the wastewater contribution permit and/or the wastewater treatment service upon proof of the elimination of the noncomplying discharge. A detailed written statement submitted by the user describing the causes of the harmful contribution and the measures taken to prevent any further occurrence shall be submitted to the city within 15 days of the date of occurrence.

(Prior Code, § 2.146.1; Ord. No. 2000-09, 5-15-2000)

Sec. 42-504. Revocation of permits.

Any user who violates the following conditions of this division, or applicable state and federal regulations, is subject to having his permits revoked in accordance with the procedures of section 42-503, this section, and sections 42-504—42-509:

- (1) Failure of a user to factually report the wastewater constituents and characteristics of his discharge;
- (2) Failure of the user to report significant changes in operations, or wastewater constituents and characteristics;
- (3) Refusal of reasonable access to the user's premises for the purpose of inspection or monitoring; or
- (4) Violation of conditions of the permit.

(Prior Code, § 2.146.2; Ord. No. 2000-09, 5-15-2000)

Sec. 42-505. Notification of violation.

Whenever the city finds that any user has violated or is violating this division, wastewater contribution permit, or any prohibition, limitation or requirements contained here, the city may serve upon such person a written notice stating the nature of the violation and indicating a time limit for the correction of the violation.

(Prior Code, § 2.146.3; Ord. No. 2000-09, 5-15-2000)

Sec. 42-506. Compliance schedule.

The city may issue a compliance schedule if there is a significant violation of this division. A compliance schedule is used when serious or long-term violations of discharge limits or conditions occur that require the design and installation of new or additional pretreatment equipment.

A compliance schedule would also be issued if installation of treatment is required to meet a new pretreatment standard in accordance with R323.2310(2)(g)(iii).

(Prior Code, § 2.146.4; Ord. No. 2000-09, 5-15-2000)

Sec. 42-507. Consent order.

The city may issue a consent order where the WWTP Superintendent believed the industrial user was committed to providing the corrective measures to correct previous violations. The consent order is a document assuring voluntary compliance and establishing an agreement with the user responsible for noncompliance. The consent order includes specific action to be taken by the user to achieve compliance within a specified period of time. A consent order shall have the same force and effect as other orders in this ordinance and shall be judicially enforceable.

Sec. 42-508. Compliance order.

The city may issue a compliance order where the WWTP Superintendent finds that a user has violated or continues to violate this ordinance, wastewater discharge permits or other orders issued under this division, or any other pretreatment standards or requirements. The compliance order will direct the user to come into compliance within 30 days. If the user does not come into compliance within 30 days, sewer service shall be discontinued

unless adequate pretreatment facilities, devices, or other related appurtenances are installed and properly operated.

Sec. 42-509. Annual public notification of significant violations.

The city shall annually publish in the city newspaper a list of all categorical industrial users which were in significant noncompliance with their respective industrial discharge permits during the previous 12 months. The City may also publish significant noncategorical industrial users. For the purposes of this provision, an industrial user is in significant noncompliance if its violations meets one or more of the following criteria:

- (1) Chronic violations of wastewater discharge limits, defined here as those in which 66 percent or more of all of the measurements taken during a six-month period exceed (by any magnitude) the daily maximum limit or the average limit for the same pollutant parameter.
- (2) Technical review criteria (TRC) violations, defined here as those in which 33 percent or more of all of the measurements for each pollutant parameter taken during a six-month period equal or exceed the product of the daily maximum limit or the average limit multiplied by the applicable TRC; TRC = 1.4 for BOD, TSS, fats, oil, and grease, and 1.2 for all other pollutants except pH.
- (3) Any other violations of a pretreatment effluent limit (daily maximum or longer-term average) that the city determines has caused, alone or in combination with other discharges, interference or pass through (including endangering the health of the POTW personnel or the general public).
- (4) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or the environment or has resulted in the POTW's exercise of its emergency authority under R 323.2306(a)(vi) to halt or prevent such a discharge.
- (5) Failure to meet within 90 days after the schedule date, a compliance schedule milestone contained in a discharge permit or enforcement order for starting construction, completing construction, or attaining final compliance.
- (6) Failure to provide, within 30 days after the due date, required reports as contained in user permits.
- (7) Failure to accurately report noncompliance.
- (8) Any other violation or group of violations which the city determines will adversely affect the operation or implementation of the pretreatment program.

(Prior Code, § 2.146.6; Ord. No. 2000-09, 5-15-2000)

Sec. 42-510. Show cause hearing.

- (a) The city may order any user which has violated, or continues to violate, any provision of this ordinance, a wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or Requirement, to appear before the city council and show cause why the proposed enforcement action should not be taken. A notice shall be served on the user specifying the time and place of a hearing to be held by the city council regarding the violation, the reasons why the action is to be taken, the proposed enforcement action, and directing the user to show cause before the city council why the proposed enforcement action should not be taken. The notice of the hearing shall be served personally or by registered or certified mail (return receipt requested) at least ten days before the hearing. Service may be made on any agent or officer of a corporation.
- (b) The city council may itself conduct the hearing and take the evidence, or may designate any of its members or any officer or employee of the assigned department to:

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- (1) Issue in the name of the city council, notices of hearings requesting the attendance and testimony of witnesses and the production of evidence relevant to any matter involved in such hearings;
 - (2) Take the evidence;
 - (3) Transmit a report of the evidence and hearing, including transcripts and other evidence, together with recommendations to the city council for action thereon.
- (c) At any hearing held pursuant to this division, testimony taken must be under oath and recorded stenographically. The transcript, so recorded, will be made available to any member of the public or any party to the hearing upon payment of the usual charges thereof.
- (d) After the city council has reviewed the evidence, it may issue an order to the user responsible for the discharge directing that, following a specified time period, the sewer service be discontinued unless adequate treatment facilities, devices or other related appurtenances shall have been installed on existing treatment facilities, devices or other related appurtenances are properly operated. Further orders and directive as are necessary and appropriate may be issued.

(Prior Code, § 2.146.7; Ord. No. 2000-09, 5-15-2000)

Sec. 42-511. Legal action.

If any person discharges sewage, industrial wastes or other wastes into the city's wastewater disposal system contrary to the provisions of this division, state or federal pretreatment requirements, or any order of the city, the city attorney may commence an action for appropriate legal and/or equitable relief in the circuit court of this county.

(Prior Code, § 2.146.8; Ord. No. 2000-09, 5-15-2000)

Sec. 42-512. Criminal Prosecution.

A. Any person who:

1. At the time of a violation knew or should have known that a pollutant or substance was discharged contrary to any provision of this chapter, or contrary to any notice, order, permit, decision or determination promulgated, issued or made by the POTW under this chapter; or
2. Intentionally makes a false statement, representation, or certification in an application for, or form pertaining to a permit, or in a notice, report, or record required by this chapter, or in any other correspondence or communication, written or oral, with the POTW regarding matters regulated by this chapter; or
3. Intentionally falsifies, tampers with, or renders inaccurate any sampling or monitoring device or record required to be maintained by this chapter; or
4. Commits any other act that is punishable under state law by imprisonment for more than 93 days;

B. Shall, upon conviction, be guilty of a misdemeanor punishable by a fine of \$500 per violation, per day, or imprisonment for up to 93 days, or both in the discretion of the court

Secs. 42-513—42-526. Reserved.

DIVISION 11. PENALTIES

Sec. 42-527. Civil Administrative Fines.

- (a) A user who has violated, or continues to violate, any provision of this ordinance, an individual wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement may be liable to the city for a maximum civil penalty of \$500 per violation, per day. In the case of a monthly or other long-term average discharge limit, penalties shall accrue for each day during the period of the violation.
- (b) Issuance of an administrative fine shall not be a bar against, or a prerequisite for, taking any other action against the User.

Sec. 42-528. Civil Penalties.

(a) A user who has violated, or continues to violate, any provision of this ordinance, an individual wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement may be liable to the city for a maximum civil penalty of \$1,000 per violation, per day. In the case of a monthly or other long-term average discharge limit, penalties shall accrue for each day during the period of the violation.

(b) The Utilities Director may recover reasonable attorneys' fees, court costs, and other expenses associated with enforcement activities, including sampling and monitoring expenses, and the cost of any actual damages incurred by the city.

(c) In determining the amount of civil liability, the court shall take into account all relevant circumstances, including, but not limited to, the extent of harm caused by the violation, the magnitude and duration of the violation, any economic benefit gained through the user's violation, corrective actions by the user, the compliance history of the user, and any other factor as justice requires.

Sec. 42-529. Violations.

Any user who is found to have violated any order of the city council, or who willfully or negligently, failed to comply with any of the provisions of this article, and the orders, rules, regulations and permits issued hereunder, shall be punished for violation of a misdemeanor. In addition to the penalties provided therein, the city may recover reasonable attorneys' fees, court costs, court reporters' fees and other expenses of litigation by appropriate suit at law against the person found to have violated this article, or the orders, rules, regulations, and permits issued hereunder. In addition, should it be determined that the POTW or any of the connecting sewer lines or lift stations have incurred damage as a result of any violation of this article, the city shall have the right to recover any and all damages from those parties in violation.

(Prior Code, § 2.147.1; Ord. No. 2000-09, 5-15-2000)

Sec. 42-530. Falsifying information.

Any person who knowingly makes any false statements, representation or certification in any application, record, report, plan or other document filed or required to be maintained pursuant to this article or wastewater contribution permit, or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required under this article, shall, upon conviction, be punished for violation of a misdemeanor.

(Prior Code, § 2.147.2; Ord. No. 2000-09, 5-15-2000)